

**Executive Office for Immigration Review
Office of Policy, Public Resources and Communications Division**

**Statement of Objectives
National Qualified Representative Program Needs Assessment**

1.0 PURPOSE

The U.S. Department of Justice, Executive Office for Immigration Review (EOIR) is required to provide legal representation and other related services nationwide to individuals in covered immigration proceedings who have been found mentally incompetent to represent themselves.

This Statement of Objectives (SOO) describes the outputs expected to be achieved in order to ensure agency compliance with the requirements set forth below.¹

2.0 BACKGROUND

EOIR operates the National Qualified Representative Program (NQRP) pursuant to the *Franco-Gonzalez v. Holder*² court orders (*Franco* court orders) and EOIR's Nationwide Policy to Provide Enhanced Procedural Protections to Unrepresented Detained Aliens with Serious Mental Disorders or Conditions (Nationwide Policy). The NQRP provides legal representation to certain unrepresented, detained individuals found by an Immigration Judge or by the Board of Immigration Appeals (BIA) to be incompetent to represent themselves in immigration proceedings.³

3.0 DEFINED TERMS

- 3.1 "NQRP Respondents" are: 1) in the custody of the Department of Homeland Security (DHS) at the time of identification; 2) in covered immigration proceedings, as defined below in 9.0, before EOIR; and 3) determined by an Immigration Judge or the BIA to be incompetent to represent themselves in their immigration proceedings.
- 3.2 "*Franco* NQRP Respondents" are subject to the *Franco* court orders. These individuals are detained at DHS facilities in the states of Arizona, California, or Washington at the time of identification.
- 3.3 "Nationwide Policy NQRP Respondents" are detained at DHS facilities outside the states of Arizona, California, or Washington at the time of identification.
- 3.4 "Qualified Representatives" are counsel ordered by an Immigration Judge or the BIA on behalf of an NQRP Respondent.

¹ The services described in this SOO may be provided by one contractor or multiple contractors

² *Franco-Gonzalez v. Holder*, CV-02211, Partial Judgment and Permanent Injunction (C.D. Cal. R. Apr. 23, 2013); *Franco-Gonzalez v. Holder*, CV 10-02211, Order Further Implementing This Court's Permanent Injunction (C.D. Cal. R. Oct. 29, 2014).

³ Nothing in this SOO negates or alters the agency's obligations under the orders of the District Court in *Franco*.

3.5 “*Franco* NQRP Cases” are cases in which the Contractor provides legal representation and other related services to *Franco* NQRP Respondents.

3.6 “Nationwide Policy NQRP Cases” are cases in which the Contractor provides legal representation and other related services to Nationwide Policy NQRP Respondents.

4.0 CONTRACT TYPE

The agency foresees a Firm Fixed Price model or a Firm Fixed Price with certain other direct costs (Time & Materials) model as possible funding mechanisms for the required services under this SOO. The agency invites vendors to suggest alternative funding mechanisms as appropriate.

5.0 TRANSITION

5.1 Transition-In: The Contractor shall develop and utilize a structured process to assume full responsibility for the required legal representation and other related services from the incumbent contractor. The Contractor must ensure seamless representation for all pending *Franco* NQRP Cases and Nationwide Policy NQRP Cases that carry over into the current award (*see* 16.0 below).

5.2 Transition-Out: Upon the expiration of the current award, the Contractor shall transfer full responsibility (including all relevant data and case information) for the required legal representation and other related services to the incoming contractor and/or the agency. The Contractor must ensure seamless representation for all pending *Franco* NQRP Cases and Nationwide Policy NQRP Cases that will carry over into the next award.

6.0 PERIOD OF PERFORMANCE

The period of performance for this contract is twelve (12) months, commencing from the date of award. Two additional twelve (12)-month option periods may be exercised at the discretion of the agency.

7.0 PLACE OF PERFORMANCE

The NQRP is a nationwide program. The Contractor must provide the required legal representation and other related services to all NQRP Respondents in covered immigration proceedings in both detained and, where applicable upon release⁴, non-detained settings.

The place of performance will include DHS detention facilities, detained and, where applicable, non-detained EOIR immigration courts, and other locations as needed.⁵

⁴ For additional information, see section 13.0, “Funding Upon Release.”

⁵ The Contractor should make every effort to meet with NQRP Respondents in person at DHS detention facilities, where practicable. Immigration Judges are also authorized by statute to hold hearings by video conference and telephone conference. *See* INA § 240(b)(2), 8 C.F.R. § 1003.25(c); *see also* Executive Office for Immigration Review,

8.0 PROCESS OVERVIEW

The agency will **affirmatively identify** NQRP Respondents to the Contractor.

The process begins when an Immigration Judge or the BIA makes a finding of incompetence and orders a Qualified Representative. The order is sent to EOIR program staff, who compile relevant information such as the immigration court with jurisdiction, the DHS facility where the NQRP Respondent is detained, and the date the individual entered DHS custody. EOIR sends this information to the Contractor, who assigns a Qualified Representative to provide required services.

9.0 REQUIRED SERVICES

9.1 Legal Representation: Provide legal representation through the provision of a Qualified Representative in the following covered immigration proceedings:

9.1.1 Representation in immigration proceedings prior to **entry of a final administrative order or determination**, as follows:

9.1.1.1 Immigration and Nationality Act Section 240 removal proceedings, deportation proceedings, and exclusion proceedings before the immigration court;

9.1.1.2 Custody redetermination (bond) proceedings before the immigration court;

9.1.1.3 Immigration court “asylum only” and “withholding only” proceedings pursuant to 8 C.F.R. § 1208.2; and

9.1.1.4 Appellate proceedings before the BIA.

9.1.2 Representation in any bond proceedings before EOIR that occur **after an order of removal has become administratively final**;

9.1.3 Representation in any motions to reopen and/or reconsideration directly relating to representation described above; and

9.1.4 Representation to obtain post-conviction relief directly relating to representation described above.

9.2 Other Related Services: Provide other related services reasonably necessary to complete the immigration proceedings listed in 9.1, including:

- 9.2.1 Development and execution of a “release plan” for release from DHS custody;⁶
- 9.2.2 Interpretation and translation services;
- 9.2.3 Facilitation of medical and social services;
- 9.2.4 Provision of expert witnesses, as necessary;
- 9.2.5 Coordination of housing and transportation; and
- 9.2.6 Communication with family members and/or community support.

9.3 Excluded from Legal Representation and Other Related Services: Services related to any claims or litigation before federal district courts, circuit courts of appeals, or the Supreme Court of the United States **are not covered under this SOO**.

10.0 QUALIFIED REPRESENTATIVE ELIGIBILITY

- 10.1 Qualified Representatives must be licensed attorneys, law students or law graduates directly supervised by licensed attorneys, or DOJ Accredited Representatives with full accreditation, as set forth in 8 C.F.R. § 1292.1.
 - 10.1.1 Licensed Attorneys must be in good standing and maintain an “active” membership in the bar of at least one State, territory, or the District of Columbia.
 - 10.1.2 Law Students or Law Graduates must be directly supervised by a licensed attorney who meets the requirements in 10.1 above. The law student must also be in good standing with an accredited law school and possess demonstrated experience assisting with immigration cases.
 - 10.1.3 Accredited Representatives must be fully accredited through EOIR’s Recognition and Accreditation Program and continue to maintain all eligibility requirements mandated under that program.
- 10.2 Qualified Representatives must be authorized to practice before the Immigration Courts and the BIA and, if applicable, must maintain an active EOIR ID. See EOIR Policy Manual Part II Chapter 2.1 (<https://www.justice.gov/eoir/reference-materials/ic/chapter-2/1>) and Part III (<https://www.justice.gov/eoir/reference-materials/bia/chapter-2/1>).
- 10.3 Qualified Representatives must complete a background check and obtain the necessary clearance(s) as required by EOIR’s Office of Security.

⁶ A release plan may include the securing of housing, arranging or coordinating the continuation of medical, psychiatric, and/or psychological services, and the facilitation of social services, etc.

- 10.4 Qualified Representatives should generally have at least one and a half years of experience practicing before the Immigration Courts and/or the BIA. Qualified Representatives with less than three years of experience should be under the significant supervision of a representative with over three years of experience.

11.0 PERFORMANCE OBJECTIVES

- 11.1 **Entry of Appearance:** Qualified Representatives are required to enter an appearance as the practitioner of record before the Immigration Court or BIA through the completion and filing of Form EOIR-28 or Form EOIR-27, respectively. *See also* Executive Office for Immigration Review, Policy Manual, Part II, Chapter 2.1 (Representation and Appearances Generally), <https://www.justice.gov/eoir/reference-materials/ic/chapter-2/1>. In completing these forms, the Qualified Representative must select the option “EOIR has ordered the provision of a Qualified Representative for the party named above and I appear in that capacity.”
- 11.2 **Timing of Entry of Appearance:** The specific timeframes required for filing an entry of appearance vary depending on when the finding of incompetence is made, as outlined below:
- 11.2.1 If the finding of incompetence is made via a Judicial Competency Inquiry⁷, the Qualified Representative will have **35 calendar days** from the date of the finding of incompetence to enter an appearance.
- 11.2.2 If the finding of incompetence is made on behalf of a *Franco* NQRP Respondent after a Forensic Competency Evaluation⁸ was ordered and a Competency Review hearing was conducted, the Qualified Representative will have **21 calendar days** from the date of the finding of incompetence to enter an appearance as required under the *Franco* court orders.
- 11.2.3 If the finding of incompetence is made on behalf of a *Franco* NQRP Respondent via either of the two methods above, and such Respondent has also been detained in DHS custody for 180 days or more, the Qualified Representative will have **15 calendar days** from the date of the finding of incompetence to 1) enter an appearance; and 2) appear at a bond hearing as required under the *Franco* court orders.

In addition to the requirements set forth above, the Qualified Representative is strongly encouraged to meet with the NQRP Respondent as soon as possible.

⁷ An information-gathering hearing to inform an Immigration Judge’s determination concerning an individual’s competence to represent him- or herself in covered immigration proceedings.

⁸ An evaluation conducted by a mental health professional when an Immigration Judge finds there is insufficient evidence to determine an individual’s competence to represent him- or herself in covered immigration proceedings.

- 11.3 **Accelerated Time Requirement:** In specific circumstances, the Qualified Representative must enter an appearance **within 10 business days of EOIR's notification to the Contractor**. Such circumstances may include cases where the BIA or a federal court has ordered or required an accelerated entry of appearance by a Qualified Representative. The agency, in consultation with the Contractor, may develop guidance on additional situations, if any, where a Qualified Representative is required to comply with this accelerated timeline.
- 11.4 **Timeline Exceptions:** If the Contractor cannot meet the requirements above, the Contractor must communicate this to EOIR in writing as soon as possible but no later than the next business day after receipt of such notice. In the event the Contractor cannot meet the requirements above for a particular NQRP Respondent(s), the agency may, in its sole discretion, choose to satisfy those requirements using alternative contractors not associated with the Contractor.
- 11.5 **Restrictions on Withdrawal:** The Qualified Representative must not seek to withdraw from representation of the NQRP Respondent solely because of the Respondent's lack of capacity, lack of cooperation, refusal to consent to, and/or objection to representation by the Qualified Representative.
- 11.5.1 The Contractor must ensure that any withdrawal request is filed as part of a substitution of counsel by another Qualified Representative to ensure the NQRP Respondent is continuously represented. The Contractor must **notify the Contracting Officer's Representative (COR) in advance** of the filing of a motion to withdraw.
- 11.5.2 Granting a withdrawal request remains in the sole discretion of the relevant EOIR adjudicator. See Executive Office for Immigration Review, Policy Manual, Part II, Chapter 2.1(b)(3)(C) (Representation and Appearances Generally), <https://www.justice.gov/eoir/reference-materials/ic/chapter-2/1#>; see also Part III, Chapter 2.1(b)(3)(C) (Representation and Appearances Generally), <https://www.justice.gov/eoir/reference-materials/bia/chapter-2/1>.
- 11.5.3 Nothing in this section precludes a Qualified Representative from moving to withdraw from representation of an NQRP Respondent where such withdrawal is otherwise required or permitted by law.

12.0 FUNDING SCOPE

- 12.1 Contract funds are restricted to activities required to provide the legal representation and other related services described in this SOO. Contract funds may not be used for any other purpose without the prior written authorization of the agency.
- 12.2 Subject to additional provisions below, contract funds may be used to provide services to NQRP Respondents whose covered immigration proceedings have not

reached a **final administrative order or determination**. An order or determination becomes administratively final upon:

12.2.1 The expiration of the period in which DHS and/or the Respondent are permitted to seek BIA review of an Immigration Judge order (thirty (30) calendar days from the date of initial entry of the order); or

12.2.2 A final BIA determination on an appeal of an order or determination by the Immigration Judge.

12.3 The COR may approve the use of contract funds past the date on which an order or determination becomes administratively final upon a showing by a Qualified Representative of exceptional circumstances warranting the continuation of funding. Qualified Representatives must receive **written approval from the COR** before using contract funds in cases that are not subject to the provisions below in which an order or determination has become administratively final.

13.0 FUNDING UPON RELEASE

13.1 NQRP Respondent Released from DHS Custody

13.1.1 Upon a ***Franco* NQRP Respondent's** release from DHS custody, contract funds may be used to provide the required legal representation and other related services until the issuance of a final administrative order or determination in covered immigration proceedings.

13.1.2 Upon a **Nationwide Policy NQRP Respondent's** release from DHS custody, contract funds may be used to provide the required legal representation and other related services until the issuance of a final administrative order or determination in covered immigration proceedings *or* until ninety (90) calendar days from the Respondent's release from DHS custody, whichever is earliest.

13.2 NQRP Respondent Remains in DHS Custody Subject to Final Administrative Order

13.2.1 When an NQRP Respondent is subject to a final administrative order and remains in DHS custody, contract funds are available to provide services for up to **90 calendar days** following the initial entry of the final order.

13.2.2 If such an NQRP Respondent is released from DHS custody, the terms of 13.1, immediately above, govern the availability of contract funds.

14.0 DELIVERABLES

14.1 Program Operation Plans: The Contractor must provide a Program Operation Plan (POP) for each current or prospective NQRP Qualified Representative organization intended to provide legal representation and other related services. Each POP must include, at a minimum, the following:

- 14.1.1 Start date and implementation schedule for all services required under this SOO;
- 14.1.2 Explanation of the capabilities of the Qualified Representative organization or individual to efficiently and effectively provide the services required under this SOO;
- 14.1.3 Plan for data management and reporting, personnel management and staffing (including staff supervision), and training for Contractor staff;
- 14.1.4 For *Franco* NQRP Respondents, a proposed plan to provide the services required under this SOO to Respondents released from DHS custody in light of the extended timelines of a non-detained docket. The plan must describe strategies for maintaining contact with such released Respondents, for ensuring continuity of representation by the same Qualified Representative, if possible, and for efficiently facilitating the transfer of such released Respondent cases to another Qualified Representative, if necessary. When possible, transfers should be made to Qualified Representatives within the same organization;
- 14.1.5 Plan to connect released NQRP Respondents to community-based services, including case management services, mental health services, medical services, substance abuse services, employment services, and housing services; and
- 14.1.6 For Nationwide Policy NQRP Respondents, a plan to utilize pro bono resources to facilitate continued legal representation for such Respondents released from DHS custody and no longer eligible for services under this SOO.

14.2 Program Development, Implementation, Monitoring, Evaluation, and Reporting Requirements: The Contractor must coordinate with the COR and on-site representatives to develop, implement, monitor, and evaluate the program at the performance sites. On-site representatives may include officials from the agency, from DHS, or other individuals deemed necessary by the Contractor or the COR. The Contractor must provide information regarding performance of this contract, as requested by the agency and on-site representatives, to permit program development, implementation, monitoring, and evaluation. Nothing in this section requires the Contractor to breach any ethical obligation the Contractor may have to withhold privileged or protected or other confidential information.

14.3 **Monthly Reports:** The Contractor must collect and provide comprehensive data regarding the NQRP cases for which it is providing representation. The Contractor must submit monthly program management progress reports to the COR listing the following data fields over the past month and cumulatively since the beginning of the period of performance, including (i) the alien registration number for **each NQRP case pending at the time of report submission**; (ii) the number of NQRP cases submitted to the Contractor for fulfillment during the reporting period; (iii) the location and jurisdiction (*Franco* or Nationwide Policy) of each NQRP case submitted to the Contractor for fulfillment during the reporting period; (iv) the number of NQRP cases completed during the reporting period, including the alien registration number and date of completion; and (v) any other data as deemed necessary by the Contracting Officer (CO) or the COR. Monthly reports are due by 11:59 p.m. Eastern Time fifteen (15) business days following the last day of each reporting period.

14.4 **Training:** The Contractor is responsible for developing and implementing all necessary training to equip Qualified Representatives with the knowledge and resources to competently provide the required services.

15.0 TRAVEL

15.1 Travel is automatically approved for trips totaling less than \$500 but will only be reimbursed based on GSA travel regulations with proof of travel included in the monthly invoice. Travel exceeding \$500 requires prior authorization.

15.2 The Contractor should make every effort to assign local Qualified Representatives to both *Franco* NQRP Cases and Nationwide Policy NQRP Cases to avoid unnecessary travel expenses.

16.0 VOLUME

16.1 Below is the estimated caseload⁹ for the contract period of performance, to include both *Franco* NQRP Cases and Nationwide Policy NQRP Cases:

16.1.1 Between 500 and 700¹⁰ estimated cases initiated **prior to the start of this contract** that will carry over into the current award; and

⁹ Several variables may cause the number of cases to fluctuate, including the fact that orders are initiated by Immigration Judges based on competency findings for the individuals appearing before them in proceedings. Immigration detention rates, public health issues, and various other factors may also affect the number of cases. The Contractor should be prepared for such fluctuations and plan its staffing accordingly.

¹⁰ Of this number, EOIR estimates that there could be approximately 500 *Franco* NQRP cases and 100-200 Nationwide Policy NQRP cases.

16.1.2 Between 300 and 400¹¹ estimated **new cases** received during the contract period of performance¹².

Note for Vendors: Cases will likely require an average of approximately 100 hours of work over the life of the case, which may extend months or years. However, there is a large range of potential work required depending on the nature of the NQRP Respondent's mental incompetence and the complexity of the case. Cases may range from approximately 20 hours for the most legally simple cases (including release plans) to over 500 hours for the most procedurally and legally complex cases with work across multiple adjudicatory bodies.

*******END OF STATEMENT OF OBJECTIVES*******

¹¹ Of this number, EOIR estimates that there could be approximately 185 new *Franco* NQRP cases and 195 new Nationwide Policy NQRP cases.

¹² The number of NQRP cases can vary by month and year. Most recently, EOIR has received an average of 30 cases per month.